



CHAPTER lviii.

An Act to confer further powers on the Northwich Gas Company and for other purposes. A.D. 1915.
[15th July 1915.]

WHEREAS by the Northwich Gas Act 1882 (in this Act referred to as "the Act of 1882") the Northwich Gas Company (in this Act referred to as "the Company") were incorporated upon the dissolution of the Northwich Gas Light and Coke Company for the purpose of manufacturing gas and supplying gas within the townships of Northwich Castle-Northwich Witton-cum-Twambrooks part of Rudheath-Lordship Winnington Hartford Anderton Barnton Lostock-Gralam and Wincham all in the parish of Great Budworth in the county of Chester and the townships of Davenham Leftwich Shurlach-cum-Bradford remaining part of Rudheath-Lordship Shipbrooke Moulton and Eaton all in the parish of Davenham in the said county of Chester :

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And whereas by the Act of 1882 the original capital of the Company was fixed at twenty-four thousand pounds divided into one thousand six hundred shares of fifteen pounds each entitled to dividends not exceeding the rate of ten pounds per centum per annum and the Company were authorised to raise twenty-six thousand pounds additional capital by the creation and issue of new ordinary shares or stock or new preference shares or stock :

And whereas the whole of the shares in the original capital are fully paid up and in exercise of the aforesaid powers of raising additional capital the Company have issued two thousand five hundred and sixty-five preference shares of ten pounds each which are all fully paid up and have received three hundred and forty-nine pounds fourteen shillings by way of premium thereon :

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And whereas by the Act of 1882 the Company were empowered to borrow sums amounting in the aggregate to twelve thousand five hundred pounds and in exercise of such powers the Company have borrowed the sum of ten thousand nine hundred pounds on mortgage:

And whereas it is expedient that the original capital of the Company authorised by the Act of 1882 be converted into stock in the manner and subject to the provisions in this Act contained:

And whereas the demand for gas within the Company's present limits of supply has increased and is increasing and it is expedient that the Company be authorised to raise further capital for the purposes of their undertaking:

And whereas it is expedient that the limits of supply of the Company be extended as in this Act provided and that such further provisions be made with respect to the Company and their undertaking as are in this Act contained:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Northwich Gas Act 1915 and this Act and the Act of 1882 may be cited together as the Northwich Gas Acts 1882 and 1915.

Incorporation of
general Acts.

2.—(1) The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

(A) The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital):

(B) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

(c) Subject as hereinafter provided the Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871. A.D. 1915.

(2) The Gasworks Clauses Act 1847 incorporated with the Act of 1882 and this Act in its application to the Company shall be read as if in section 13 the words "or any premises" were inserted after the words "private building" and as if the words "Provided that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act— Interpretation.

The expression "the Company" means the Northwich Gas Company;

The expression "the Act of 1882" means the Northwich Gas Act 1882;

The expression "limits of supply" means the limits within which the Company are for the time being authorised to supply gas;

The expressions "the undertaking" and "the gas undertaking" mean the undertaking of the Company for the supply of gas as authorised by the Act of 1882 and this Act;

The expression "calorific power" means the total heat value expressed in British thermal units;

The expression "British thermal units" means British thermal units gross per cubic foot of gas.

LANDS &c.

4. The Company may for the purposes of the undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the other lands which they are by the Act of 1882 authorised to hold any lands and hereditaments not exceeding in the whole five acres which they may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands authorised to be so used by or under the Act of 1882. Power to purchase lands by agreement.

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Power to sell
and lease
lands.

5. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands (so far as such provisions are applicable) the Company may sell or let on lease for such periods as they think fit or otherwise dispose of any lands or property for the time being belonging to them and which may not at the time be required for the purposes of the undertaking or any easements or rights in or under any lands for the time being belonging to them and may retain and hold or sell and dispose of any interest in or reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

Power to lay
pipes in
streets not
dedicated to
public use.

6. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Act of 1882 and this Act.

Power to lay
pipes &c. for
ancillary
purposes.

7.—(1) The Company may lay down and repair take up alter or relay or renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

(2) Section 58 (Protection of London and North Western Railway Company) of the Act of 1882 shall apply and have effect in regard to any mains pipes or culverts laid down repaired taken up altered re-laid or renewed under this section upon across over under or in any way affecting the railways lands or property of the London and North Western Railway Company or the bridges approaches viaducts stations or other works or any level crossing of such railway.

For protec-
tion of Ches-
hire County
Council.

8. The following provisions for the protection of the Cheshire County Council (in this section called "the county council")

shall unless otherwise agreed in writing between the county council and the Company apply and have effect with respect to the exercise of any powers of the Company within the limits of supply in or affecting any main roads (other than main roads maintainable by an urban district council under section 11 (2) of the Local Government Act 1888) and bridges and approaches thereto vested in the county council (that is to say):—

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- (1) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any such road bridge or approach be not less than seven days instead of three days:
- (2) All new mains pipes and works (not being replacements of existing mains pipes or works) to be laid in or along any such road or in upon or across any such bridge or approach shall be laid in such position in or at the side thereof as the county council shall by writing under the hand of their surveyor reasonably direct:
- (3) All works shall be executed so as not to stop or unreasonably interfere with the traffic over or along any such road bridge or approach and the Company shall not without the consent of the county council under the hand of their surveyor open or break up at any one time a greater consecutive length of such road bridge and approach than two hundred yards:
- (4) The exercise of the powers of the Company shall not in any way limit or affect the powers of the county council to divert improve alter widen or reconstruct any road or to remove alter widen or rebuild any bridge or approach in alongside over under or near to which any such works of the Company are laid or carried in the same manner as they might have diverted improved altered widened or reconstructed any such road or removed altered widened or rebuilt any such bridge or approach if such works had not been so laid or carried and in the event of any such road bridge or approach in alongside over under or near to which any such works are laid or carried being diverted improved removed altered widened reconstructed or rebuilt as aforesaid the Company shall within such reasonable time as the surveyor of the county council may prescribe alter such works to

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such position as he may reasonably fix and replace the same to his reasonable satisfaction. Provided that before such diversion improvement removal alteration widening reconstruction or rebuilding of any such road bridge or approach shall be commenced the county council shall (except in cases of emergency) give twenty-one days' notice in writing to the Company of their intention to carry out such works and if in order to avoid interruption to the supply of gas by the Company it is in the opinion of such surveyor necessary to temporarily remove any work belonging to the Company from such road bridge or approach then the Company shall (and they are hereby authorised so to do) temporarily carry their works across such bridge or by the side of such road or approach in such manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council and shall be approved of by the county surveyor. Provided that in the case of the diversion improvement alteration widening or reconstruction of any road or approach to any bridge the county council shall repay to the Company any expense reasonably incurred by them in complying with any requirement of the said surveyor under this subsection or in temporarily carrying their works by the side of such road or approach :

- (5) If any difference shall arise between the county council and the Company under this section such difference shall be referred to two justices sitting as a court of summary jurisdiction who shall hear and determine the matter in dispute in all respects as if the same were a difference between the Company and the county council under the Gasworks Clauses Act 1847.

EXTENSION OF LIMITS OF SUPPLY.

Extension of
limits of
supply.

9. The limits within which the Company may supply gas under the Act of 1882 as amended by this Act shall be extended so as to include the parish of Weaverham in the rural district of Northwich in the county of Chester and the Company shall have and may exercise within the said parish all and the like powers privileges and authorities for and in relation to the supply of

gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the existing limits of supply. A.D. 1915.

10. In executing and maintaining any works authorised by this Act in the parish of Weaverham and in laying down and repairing under the provisions of the section of this Act whereof the marginal note is "Power to lay pipes &c. for ancillary purposes" any works in the limits of supply where the same will cross over or under or otherwise affect any railway or any part of the works or property of the Cheshire Lines Committee (hereinafter referred to as "the committee") the Company shall (except so far as it may be otherwise agreed between the committee and the Company) be subject to the following conditions:—

For protec-
tion of Ches-
hire Lines
Committee.

- (1) All such works shall be executed and maintained under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the committee and (except in cases of emergency) according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for twenty-one days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Company of his objections thereto he shall be deemed to have approved thereof:
- (2) If within twenty-one days after the receipt of any such plans and drawings the committee give to the Company notice that they themselves desire to execute any part of the work (other than the actual laying down of the mains which shall be done by the Company) which will cross over or under any railway or work belonging to them the committee may except in cases of emergency themselves execute such part of the work under the superintendence and to the reasonable satisfaction of the Company's engineer and recover the reasonable costs thereof from the Company:
- (3) All works which the Company may execute under this section shall be constructed as to cause as little injury as may be to the railways works and property

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of the committee and no interruption to the passage or conduct of traffic over the same and if in consequence of the execution or failure of such works any injury be caused to the said railways works and property or any interruption be caused to the traffic the Company shall make compensation to the committee in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided:

- (4) The Company shall bear and on demand pay to the committee the reasonable expense of the employment by the committee during the execution of the works affecting the said railways of a sufficient number of watchmen and flagmen to be appointed by the committee for watching and signalling the same with reference to and during the execution of any such work of the Company and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors:
- (5) Any dispute or difference which may arise between the committee and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the committee or the Company and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

CALORIFIC POWER AND TESTING OF GAS.

Testing
place.

11. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing place shall be the testing place provided in pursuance of section 55 (Testing place) of the Act of 1882 or a new testing place to be provided by the Company in lieu thereof on some part of the lands described in the schedules to the Act of 1882.

Testing for
calorific
power.

12.—(1) Within six months from the passing of this Act the Company shall provide at the prescribed testing place apparatus for testing the calorific power of the gas supplied by

them at such testing place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905. A.D. 1915.

(2) As from the date on which the Company shall have completed the provision of the apparatus for testing the calorific power the calorific power of the gas supplied by the Company shall be five hundred British thermal units and that power is in this Act referred to as "the standard calorific power."

(3) As from such date the provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Company and sections 28 to 30 and 33 of that Act shall in their application to the Company be construed as if calorific power were therein mentioned in lieu of illuminating power.

13.—(1) Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day. Provisions as to testing.

(2) The Company shall be entitled on each occasion of the testing of gas under the provisions of this section to be represented by some officer who shall not interfere in the testing.

(3) The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence.

14. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):— Penalties for deficient calorific power.

Where the deficiency does not exceed fourteen British thermal units forty shillings;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds;

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

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Saving as to
penalties.

15. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which the gas examiner reports or it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

PRICE OF GAS IN CERTAIN CASES.

Power to
vary price
according to
purpose for
which gas is
supplied.

16. Notwithstanding anything contained in this or any other Act relating to the Company the price to be charged by the Company for a supply of gas may subject to the provisions of section 52 of the Act of 1882 vary according to the purposes for which the gas is supplied as may be agreed upon between the Company and the person taking such supply Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

Charge for
gas supplied
by means of
prepayment
meters.

17.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove or in either of such cases at the rate of ten per centum per annum on the cost of the meter and fittings whichever shall be the higher.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connection therewith. A.D. 1915.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

18. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes) the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises. Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Minimum charge for gas laid on to premises having a supply of electricity or power gas.

PROVISIONS IN REGARD TO SUPPLY OF GAS.

19.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings (in this section referred to as "fittings") for lighting motive power heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

Power to supply gas fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be and all fittings let for hire

A.D. 1915. as aforesaid notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises shall at all times continue to be the property of and removable by the Company provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

(3) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any fittings are or shall be fixed.

As to construction and placing of pipes &c. between mains and meters.

20. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the

afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with: A.D. 1915.

- (6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

21.—(1) In any case in which the Company are by virtue of any enactment relating to their gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847: As to mode of cutting off supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

22. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers Occupier to pay expenses of reconnecting disconnected supply.

A.D. 1915. — conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Gas consumers to give notice to Company before removing.

23. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever date shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Company may refuse to supply gas in certain cases.

24. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Power to enter premises and remove fittings.

25. The power to enter premises and to remove pipes meters fittings or apparatus conferred on the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Period of error in defective meters.

26. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

27. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer.

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Anti-fluc-
tuators for
gas engines.

28. The Company may enter into and fulfil any contract or arrangement with any county urban rural or local authority having powers within any part of the limits of supply for the supply of gas by the Company for public purposes for any period not exceeding under any one such contract or arrangement seven years. Provided that such supply shall not be given for use beyond the limits of supply except with the consent of any company or person supplying gas under parliamentary authority within the area within which the supply is to be used.

Contracts
for supplying
gas for public
purposes.

29. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply.

Company
may enter
into con-
tracts for
supply of
gas.

CONVERSION OF EXISTING ORDINARY SHARES INTO STOCK.

30.—(1) As from the thirty-first day of December one thousand nine hundred and fifteen all the existing ordinary shares of the Company shall be converted into stock to be called "ordinary stock" to the amount of forty thousand pounds bearing a rate of interest of six pounds per centum per annum and such ordinary stock shall be divided among the holders of ordinary shares in the existing capital of the Company in the proportion of twenty-five pounds of ordinary

Conversion
of ordinary
shares of
Company
into stock.

A.D. 1915. stock for every existing ordinary share of fifteen pounds in the original capital of the Company.

(2) As from the thirty-first day of December one thousand nine hundred and fifteen there shall be by virtue of this Act created such nominal amount of six pounds per centum ordinary stock as shall be necessary for the purpose of carrying into effect the conversion of such ordinary shares.

(3) The amount of ordinary stock to which the respective holders of existing ordinary shares become by virtue of this Act entitled in substitution for such existing shares shall be vested in such holders as from the said thirty-first day of December one thousand nine hundred and fifteen and shall be forthwith registered in their respective names in the books of the Company.

Stock to be held on same trusts &c. as shares for which it is substituted.

31. All ordinary stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights upon the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing shares for which the ordinary stock is substituted were held or were subject immediately before the thirty-first day of December one thousand nine hundred and fifteen and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing shares and trustees executors or administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept ordinary stock in substitution for such existing shares held by them in the capital of the Company and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have held retained disposed of or otherwise dealt with such existing shares.

Certificates of shares to be called in and others issued.

32. The Company shall call in the certificates of the existing ordinary shares for which ordinary stock shall be substituted by virtue of this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of ordinary stock of the amounts to which those proprietors are by this Act entitled but no shareholder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing

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certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity in respect thereof as the directors may require. Provided always that until the issue of such new certificates the existing certificates shall (according to the amounts of ordinary stock to be substituted by virtue of this Act for the existing shares which they respectively represent) have and confer the same rights and advantages as if they were certificates for those respective amounts of ordinary stock created by virtue of this Act but if any holder of any of the existing ordinary shares of the Company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the proprietors' address book of the Company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the ordinary stock so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and until such guarantee or indemnity is given in respect of such lost or destroyed certificate as the directors may require.

33. Subject to the provisions of this Act the provisions of the Companies Clauses Acts 1845 to 1889 shall extend and apply to the ordinary stock of the Company as if the same had been consolidated under the provisions of the Companies Clauses Consolidation Act 1845 with respect to the consolidation of shares into stock and sections 18 19 and 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to the ordinary stock and dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

Application
of provisions
of Com-
panies
Clauses Acts
to ordinary
stock.

34. All transfers or other dispositions of any ordinary shares in the capital of the Company as existing up to the conversion thereof into ordinary stock by virtue of this Act shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers or dispositions of the amounts of ordinary stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall

Transfers of
shares al-
though by
present name
to be valid.

A.D. 1915. — describe the same by the name or denomination which the shares transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific nominal amount of any such existing ordinary shares converted by this Act into ordinary stock of larger nominal amount shall be held to apply to a nominal amount of ordinary stock equal to that into which such existing ordinary shares shall have been converted under the provisions of this Act.

ADDITIONAL CAPITAL.

Power to
raise addi-
tional
capital.

35. The Company may from time to time raise (in addition to the existing preference shares and the ordinary stock created by virtue of this Act) additional capital to such nominal amount as shall be sufficient to produce including the premiums if any which may be obtained on the sale thereof the sum of forty-five thousand pounds by the creation and issue of further amounts of ordinary shares or stock entitled to a maximum dividend of six pounds per centum per annum or of preference shares or stock entitled to a maximum dividend not exceeding five pounds per centum per annum :

Provided that the Company shall not raise by the issue of preference shares or stock a greater amount of capital (inclusive of the amount of the preference capital already issued by the Company) than one-half part of the amount of the capital of the Company which at the time of issue of the preference capital has been actually issued or raised by the Company.

New shares
or stock to
be sold by
auction or
tender.

36.—(1) All shares or stock created as additional capital under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All such shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows :—

(A) Notice of the intended sale shall be given in writing to the clerk of each district council whose district or any portion of whose district is within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised

once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply: A.D. 1915.

- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold may be again offered for sale by public auction or by tender in accordance with the provisions of this section

A.D. 1915. and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

Privileges
&c. of
holders of
additional
capital.

37. Except as is otherwise by this Act provided the additional capital created by the Company under this Act shall be part of the general capital of the Company and the new shares or stock therein and the holders thereof respectively shall in proportion to the amount of their shares or stock be entitled to the like rights of voting and any other rights qualifications and privileges and be subject to the like provisions and liabilities as the other holders of shares or stock of the same class or description.

DIVIDENDS.

Profits of
Company
limited.

38.—(1) The Company shall not in respect of any year after the thirty-first day of December one thousand nine hundred and fifteen pay out of their profits any larger dividends on their capital than the following rates (namely):—

On the ordinary shares or stock the rate of six pounds in respect of every one hundred pounds of such shares or stock or part thereof actually paid up or deemed to be paid up thereon;

On so much of the additional capital as may be issued as preference shares or stock such rate (not exceeding the rate of five pounds in respect of every one hundred pounds of such shares or stock or part thereof actually paid up thereon) as shall be specified in the resolution creating such stock;

unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend:

Provided that any arrears of dividend accrued prior to the thirty-first day of December one thousand nine hundred and fifteen which may be divided amongst the holders of the stock into which the existing ordinary shares of the Company are by

this Act converted shall be at the rate of twelve shillings per centum upon the total amount of such stock for every one pound per centum due in respect of the said existing ordinary shares. A.D. 1915.

(2) As from the said thirty-first day of December one thousand nine hundred and fifteen so much of section 26 (Profits of the Company limited) of the Act of 1882 as relates to the maximum rate of dividend on the ordinary capital is hereby repealed.

BORROWING POWERS AND MISCELLANEOUS FINANCIAL PROVISIONS.

39.—(1) The Company may at any time and from time to time after the thirty-first day of December one thousand nine hundred and fifteen borrow on mortgage of the undertaking in respect of the existing preference shares and the ordinary stock into which the existing ordinary shares in the capital of the Company are by this Act converted any sum or sums not exceeding (inclusive of any sums borrowed by them prior to that date under the Act of 1882) the sum of twenty-two thousand pounds. Power to borrow.

(2) The Company may (in addition to the moneys which they are authorised to borrow as aforesaid) from time to time subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital by this Act authorised to be raised any sum or sums not exceeding in the whole one-third part of the amount of such capital (including premiums) which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

(3) The following provisions of the Act of 1882 shall with all necessary modifications extend and apply to the exercise of the additional powers of borrowing conferred upon the Company by this section as if the same were re-enacted in this Act (that is to say):—

Section 37 (Debenture stock);

Section 39 (Priority of mortgages over other debts).

A.D. 1915.

Company not
to convert
borrowed
money into
capital.

Existing
mortgages
to have
priority.

Repeal of
provisions
of Act of
1882 with
respect to
appointment
of receiver.

For appoint-
ment of
receiver.

Stock to be
transferable
in multiples
of one pound.

Receipt in
case of per-
sons not sui
juris.

40. Notwithstanding anything contained in the Act of 1882 the provisions of the Companies Clauses Consolidation Act 1845 relating to the conversion of borrowed money into capital shall not apply to the moneys or any part thereof authorised to be borrowed on mortgage under the Act of 1882 or this Act.

41. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

42. The provisions of the Act of 1882 by which the mortgagees of the Company are empowered to enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver are hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision previous to the passing of this Act.

43. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than four thousand pounds in the whole.

44.—(1) Any ordinary stock preference stock or debenture stock of the Company may be issued and be transferable in amounts of one pound or multiples of one pound provided that the holding of any holder of either class of such stock shall not be less than ten pounds of stock of that class.

(2) Notice of this enactment shall be stated in all certificates of such stock.

45. If any money is payable to a shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge.

46. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

A.D. 1915.
Application
of moneys.

47. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act" during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
as to raising
money
during war.

MEETINGS.

48. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be seven shareholders or stockholders present in person or by proxy holding in the aggregate shares or stock of the nominal value of two thousand pounds.

Quorum of
general
meetings.

49.—(1) As from the thirty-first day of December one thousand nine hundred and fifteen every holder of ordinary shares or stock and (subject as hereinafter mentioned) of preference shares or stock of the Company shall be entitled to one vote for every complete ten pounds of such shares or stock held by him.

Scale of
voting.

(2) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock forming part of the additional capital to which a preferential dividend shall be assigned.

50. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock any one of those persons may vote at any meeting either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any shares or stock stand shall for the purposes of this section be deemed joint holders thereof.

Joint holders
of stock.

A.D. 1915.

DIRECTORS AND AUDITORS.

As to directors holding offices of profit under or being interested in contracts with Company.

51. Notwithstanding anything in the Companies Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract. Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

Notice to be given of any person desirous to be elected as director of Company or of opposition to re-election.

52. From and after the passing of this Act no person not being a retiring director of the Company shall be eligible to be elected at any general meeting a director of the Company unless notice in writing is given to the secretary or left at the principal office of the Company fourteen days at least before the day of election that such person will be proposed for election as a director of the Company and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office. Any such person must have been the holder of the qualifying amount of shares or stock for at least three months prior to his election. In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner.

As to appointment of managing director.

53.—(1) The directors may appoint any one of their body to be a managing director of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director. A.D. 1915.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

54. The prescribed number of auditors shall be one but the number may be increased to two by a resolution of the proprietors of the Company passed at a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade and need not hold shares or stock of the Company. Auditors.

MISCELLANEOUS.

55.—(1) The directors of the Company may with the sanction of a majority of the proprietors present and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify or alter a scheme enabling the workmen servants and employees of the Company (hereinafter called "employees") or any class or classes of such employees as may be defined in such scheme or schemes to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee. Profit sharing.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen and shall be in writing and may be made on the part of the Company under the hands of any two directors of the Company or under the hand of the secretary of the Company or of any person from time to time appointed in that behalf by resolution of the board of directors of the Company.

A.D. 1915.

Dwelling-
houses for
Company's
employees
offices show-
rooms &c.

56. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Power for
directors to
determine
remunera-
tion of sec-
retary.

57. In addition to the powers which the directors of the Company may exercise under the Companies Clauses Acts 1845 to 1889 or otherwise they may from time to time determine the remuneration of the secretary of the Company.

Power to
make super-
annuation
and other
allowances.

58. It shall be lawful for the directors of the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Company.

Power to
directors to
subscribe to
hospitals &c.

59. The directors of the Company may subscribe or make donations to infirmaries and hospitals and to convalescent homes and to other institutions and objects or to any exhibition and to the benevolent and sick funds of the employees of the Company and may for that purpose apply the funds and revenues of the Company.

Power to
issue stock
under co-
partnership
rules.

60.—(1) Notwithstanding anything contained in this or any other Act relating to the Company the Company may if and whenever required so to do by the trustees appointed under any co-partnership rules of the Company for the time being in force issue to any person in the employ of the Company such amount of ordinary stock as the trustees may specify without first offering such stock for sale by public auction or tender.

(2) Any ordinary stock issued under the provisions of this section shall be issued at as near as may be the average price at which according to the Company's books sales of stock of the same class or description were effected within the period of six months immediately preceding the date on which such stock is issued or if only one sale was effected within such period at the price on such sale according to the Company's books or if no sales were effected within such period then at the average price of the previous three sales according to the Company's books but in each case there shall be deducted or added such due allowance as shall be necessary having regard to any accrued or

accruing dividend at the dates of such sales or of the issue of such stock and the value of such stock shall be certified by the secretary of the Company and his certificate shall be binding. A.D. 1915.

61. Subject to and in accordance with the regulations set forth in the First Schedule to this Act any person in the employment of the Company and holding in his own right any stock of the Company or having any money left in the hands of the Company on account of any share in the profits of the Company or having any money deposited with the Company (all of which moneys are in this Act referred to as "deposits") may if he be of the age of sixteen years or upwards nominate any person to transfer the said stock and to receive any such deposits at the death of the person so nominating and in the event of any such person holding such stock or having such deposits dying without having made a nomination which shall be in force at his death the directors of the Company may register such stock and pay or distribute such deposits.

Persons in employment of Company may nominate others to transfer stock &c. held by such persons.

62. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentication and service of notices by Company.

63. Proceedings for the recovery of any demand made under the authority of this Act or the Act of 1882 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that

Recovery of demands.

A.D. 1915. the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of penalties &c.

64. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Several sums in one summons.

65. Where the payment of more than one sum by any person is due under this Act any summons or warrant issued for the purposes of this Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Repeal of certain sections of Act of 1882.

66. The sections of the Act of 1882 of which the numbers and marginal notes are set forth in the Second Schedule to this Act are hereby repealed as regards the sections set forth in the first part of such schedule as from the passing of this Act and as regards the sections set forth in the second part of such schedule as from the thirty-first day of December one thousand nine hundred and fifteen but in each case without prejudice to anything done or suffered to be done thereunder.

Provisions as to purchase of undertaking by urban district council of Northwich.

67.—(1) If the urban district council of Northwich (in this section called "the council") shall introduce in the next session of Parliament a Bill for an Act to empower them to purchase the undertaking of the Company and shall bonâ fide promote the same the Company shall not oppose such Bill except in so far as they may deem necessary in order to secure the insertion therein of provisions to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit.

(2) If the council obtain an Act authorising such purchase they shall give notice of their intention to purchase within six months after the passing of such Act and thereupon the Company shall sell and transfer and the council shall purchase the undertaking of the Company subject to all their then existing debentures mortgages debts obligations and liabilities.

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(3) Such sale and purchase shall be for such price or consideration and on and subject to such terms and conditions as may be agreed upon between the Company and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking of the Company. Provided that for the purposes of such arbitration the sale and purchase shall be deemed to be a sale and purchase by compulsion and not by agreement.

(4) In addition to the amount to be paid by the council to the Company under the foregoing provisions of this section the council shall pay to the Company the costs charges and expenses of the Company of and incidental to (a) the obtaining of this Act and (b) the watching or procuring of any amendment of the Bill to be introduced by the council (the before-mentioned costs charges and expenses to be taxed as between solicitor and client) and the sum of two hundred pounds in respect of the transfer of the undertaking and the winding up of the Company.

(5) The council shall also pay compensation to the directors of the Company and to any officers and servants (except weekly servants of less than ten years' service) in the regular employment of the Company who shall not be retained by the council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company on the fifteenth day of April one thousand nine hundred and fifteen in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the council the amount of such compensation in default of agreement to be determined by arbitration as aforesaid. Provided that the engineer and manager and secretary and any officer or servant who has been in the employment of the Company for ten years or upwards shall not lose his right to compensation as aforesaid by reason of his refusal to accept employment under the council nor shall any such refusal be taken into account as a ground for reducing the amount of compensation to be paid.

(6) The Company shall not without the previous consent in writing of the council either enter into any contract agreement or obligation (except such as may be necessary for carrying on

A.D. 1915. — the undertaking in the ordinary course of business) or (save as hereinafter provided) raise any capital in pursuance of this Act before the thirtieth day of November one thousand nine hundred and fifteen nor thereafter if the council shall then have published notice of their intention to introduce such Bill as aforesaid into Parliament and shall subsequently introduce such Bill unless such Bill shall have been withdrawn or rejected. Provided that the Company shall be entitled at any time after the passing of this Act to raise by borrowing such sum or sums as may be necessary for carrying on the undertaking in the ordinary course of business.

(7) For the purposes of this section the expression "the undertaking of the Company" includes all the works engines mains pipes and machinery lands and buildings plant fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of transfer of the undertaking of the Company to the council save and except cash in hand or with their bankers book debts received or due on credit or revenue account and except any profits then to be divided and except the books and papers relating exclusively to the shareholders in and the constitution of the Company and also except movable stock in trade gas coal and other stores which shall be taken over by valuation at the date of transfer.

Crown
rights.

68. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Saving as to
general
Acts.

69. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of Act.

70. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act. A.D. 1915.

FIRST SCHEDULE.

REGULATIONS AS TO NOMINATIONS BY PERSONS IN THE EMPLOYMENT OF THE COMPANY TO TRANSFER STOCK &C. AND AS TO PAYMENT OF DEPOSITS OF DECEASED DEPOSITORS.

1. In these regulations "the Company" means the Northwich Gas Company "directors" and "secretary" mean the directors and the secretary of the Company "stock" means and includes stock of the Company "appointor" means any person entitled to make a nomination under the provisions of the section of the Northwich Gas Act 1915 the marginal note whereof is "Persons in employment of Company may "nominate others to transfer stock &c. held by such persons" and "deposits" has the meaning given thereto in the same section.

2. Every such nomination shall be in writing and shall be signed by the appointor in the presence of a witness and shall be sent by post or otherwise to the secretary during the lifetime of the appointor. The receipt of every such nomination shall be acknowledged by the secretary.

3. Every such nomination shall be in the form prescribed by the directors which may be obtained from the secretary.

4. Every such nomination shall be registered by the secretary.

5. Any such nomination may be revoked by the appointor by writing under his hand signed in the presence of a witness.

Any such revocation shall be sent by post or otherwise to the secretary during the lifetime of the appointor and shall be registered by the secretary in like manner as in the case of a nomination. The receipt of every such revocation shall be acknowledged by the secretary.

6. A nomination may relate to the whole of the stock and deposits standing in the name of an appointor or to part only of such stock and deposits.

7. Except where otherwise stated a nomination shall be deemed to extend to all stock and deposits to which an appointor is entitled at the time of his decease but an appointor may in a nomination expressly exclude any part of such stock or deposits from the operation of such nomination.

8. A nomination may be in favour of one person or of several persons and in the latter case may direct that the stock shall be

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registered in the name of and that the deposits shall be paid to one or more of the persons named in the nomination or that the persons named in such nomination may be registered as owners of the stock and may take the deposits or any of them respectively in specified shares or may give directions to both effects.

9. No person who witnesses the signature of an appointor to a nomination shall take any benefit under such nomination.

10. Where the value of the stock and deposits belonging to an appointor at the time of his decease does not exceed in the whole the sum of one hundred pounds the directors shall subject to the provisions of these regulations as to duty transfer such stock and pay such deposits to the persons named in the nomination made by the appointor and in force at the time of his death according to the directions of such nomination and the receipt of any person so named shall be a good discharge to the directors for the sum so paid notwithstanding such person has not attained the age of twenty-one years if such person has attained the age of sixteen years.

11. If upon the decease of an appointor the value of the stock and deposits belonging to him or to his estate exceed one hundred pounds the nomination shall take effect subject to the provisions of these regulations as to duty as regards any stock or deposits to which the same relates not exceeding one hundred pounds in like manner as if it were a will of the deceased appointor duly executed but shall not take effect in any other manner and a nomination shall not in such case be deemed void because the appointor was a minor at the time such nomination was made.

In any such case as last aforesaid the directors may subject to the provisions of this regulation transfer any stock and pay any deposits to which a nomination relates not exceeding in the aggregate one hundred pounds according to the directions of such nomination notwithstanding the production of probate of the will of a deceased appointor or letters of administration to his estate.

12. Where any person nominated to receive any stock or deposits on the death of an appointor is an infant under the age of sixteen years and it is proved to the satisfaction of the directors that funds are urgently needed for the maintenance education or benefit of such infant the directors may transfer or pay the stock or deposits mentioned in the nomination or any part thereof to any person who may satisfy the directors that he will apply such money for the maintenance education or benefit of such infant and the receipt of such person shall be a good discharge to the directors for the amount so paid.

13. The directors may require proof to their satisfaction of the decease of an appointor.

14. Where the value of the stock and deposits belonging to an appointor at the time of his decease do not altogether exceed one

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hundred pounds exclusive of interest and probate of the will of such appointor or letters of administration to his estate and effects is not or are not produced within such time as the directors think reasonable if such appointor has made no nomination and so far as any nomination does not extend the directors may subject to the provisions of these regulations as to duty without requiring probate of the will or letters of administration of the estate and effects of the deceased appointor in their discretion register such stock in the name of and pay or distribute the amount so due as aforesaid to or among any of the persons hereinafter described or indicated (that is to say):—

- (1) Any person who has paid the funeral expenses of the appointor :
- (2) The widow of the appointor :
- (3) The persons entitled to the effects of the appointor according to the statutes of distribution :
- (4) Any person undertaking to maintain the children of the appointor :
- (5) The solicitor to the Treasury if the appointor being illegitimate dies intestate leaving no widow or issue.

15. If the total property of any deceased appointor exceeds one hundred pounds after deduction of debts and funeral expenses any stock or deposits which may under these regulations be transferred or paid otherwise than to the legal personal representative of the appointor shall notwithstanding such transfer or payment be for the purposes of estate duty treated as passing under the will or intestacy of the deceased appointor.

The directors shall before transferring or paying any stock or deposits standing to the credit of a deceased appointor to anyone but the legal personal representative of such deceased appointor require a declaration by the claimant or one of the claimants or other the person to whom the directors see fit to make such payment or to transfer such stock that the total estate of the deceased appointor including the amount of such moneys or stock does not after deduction of debts and funeral expenses exceed the value of one hundred pounds.

In every such case as aforesaid where the total estate of the deceased appointor including such stock and deposits but after deduction of debts and funeral expenses exceeds one hundred pounds the directors shall before making any transfer or payment as aforesaid to any person other than the legal personal representative of the deceased appointor require production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and of a duly stamped receipt for the succession or legacy duty payable in respect of such stock or deposits or of a certificate stating that no succession or legacy duty is payable.

A.D. 1915.

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16. The receipt of any of the persons mentioned in these regulations shall be a good discharge to the directors for the sum paid and any such receipt may be signed by any widow or next-of-kin above the age of sixteen years notwithstanding that she or he has not attained the age of twenty-one years.

SECOND SCHEDULE.

FIRST PART.

SECTIONS OF THE ACT OF 1882 REPEALED AS FROM THE PASSING OF THE FOREGOING ACT.

- 28. (New shares to be offered by auction or tender);
- 29. (Purchase money of capital sold by auction to be paid within three months);
- 30. (As to notice to be given as to sale &c. of shares);
- 31. (Shares not sold by auction or tender to be offered to shareholders);
- 32. (Application of premium arising on issue of shares or stock);
- 36. (As to conversion of borrowed money into capital);
- 38. (Application of moneys);
- 40. (First ordinary meeting).

SECOND PART.

SECTIONS OF THE ACT OF 1882 REPEALED AS FROM THE 31ST DAY OF DECEMBER 1915.

- 33. (Power to borrow in respect of original capital);
- 34. (Power to borrow in respect of additional capital).

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